

SENATE No. 2335**The Commonwealth of Massachusetts**

PRESENTED BY:

Liz Miranda

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect Native American heritage.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Liz Miranda</i>	<i>Second Suffolk</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/10/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/12/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/2/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/9/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>4/9/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>4/22/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>5/5/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>5/14/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/12/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>10/15/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>10/21/2025</i>

SENATE No. 2335

By Ms. Miranda, a petition (accompanied by bill, Senate, No. 2335) of Liz Miranda, Joanne M. Comerford and Manny Cruz for legislation to enforce penalties under the Native American Graves Protection and Repatriation Act. Tourism, Arts and Cultural Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect Native American heritage.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. As used in this section, the following words shall, unless the context
2 otherwise requires, have the following meanings:—

3 "Native American" as defined in the Native American Graves Protection and Repatriation
4 Act in accordance with 25 U.S.C. 3001 et seq.

5 "funerary objects" as defined in the Native American Graves Protection and Repatriation
6 Act in accordance with 25 U.S.C. 3001 et seq.

7 "sacred objects" as defined in the Native American Graves Protection and Repatriation
8 Act in accordance with 25 U.S.C. 3001 et seq.

9 "objects of cultural patrimony" as defined in the Native American Graves Protection and
10 Repatriation Act in accordance with 25 U.S.C. 3001 et seq.

SECTION 2. The penalties and requirements of the Native American Graves Protection and Repatriation Act in accordance with 25 U.S.C. 3001 et seq. shall be enforced if an agency, organization, entity, or department receiving funds of any kind from the Commonwealth or any local government therein; or a trust, unincorporated association, nonprofit corporation organized under Chapter 180 of the Massachusetts General laws or public charity duly registered with the Office of the Attorney General moves to deacquisition any Native American funerary objects, human remains, sacred objects, or objects of cultural patrimony.